

24CMCV01930 24CMCV01930

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-26

Motion: (1) DEFENDANT'S MOTION TO COMPEL PLAINTIFF'S DEPOSITION; AND (2) DEFENDANT'S MOTION TO COMPEL VEHICLE INSPECTION DATE: June 26, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01930 Hearing Date: June 26, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CHERYL LYNN GIBBONS,

an individual,

Plaintiff,

vs.

KIA AMERICA, INC., a California Corporation,

and DOES 1 through 10, inclusive,

Defendant.

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CASE

NO: 24CMCV01930

[TENTATIVE] ORDER RE:

(1) DEFENDANT'S MOTION TO COMPEL PLAINTIFF'S DEPOSITION; AND (2)
DEFENDANT'S MOTION TO COMPEL VEHICLE INSPECTION

DATE: June 26, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

Kia America, Inc.

Responding Party: Plaintiff

Cheryl Lynn Gibbons

Notice: OK

Tentative Ruling: (1)

Defendant's Motion to Compel Plaintiff's Deposition is GRANTED; and

(2) Defendant's Motion to Compel Vehicle Inspection is GRANTED.

I.

BACKGROUND

This is a

Song-Beverly action arising out of Plaintiff Cheryl Lynn Gibbon's purchase of a 2019 Kia Sorento, VIN No.: 5XYPG4A5XKG464289 (the "Subject Vehicle"). Plaintiff alleges that she purchased the Subject Vehicle, certified pre-owned, from Defendant Kia America, Inc. ("Defendant" or "Kia"). Plaintiff alleges the Subject Vehicle was delivered to her with serious defects and Defendant failed to repair or replace it as required.

On December 6, 2024, Plaintiff filed her operative Complaint against Kia and Does 1 through 10, inclusive, alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act Section 1793.2.

On May 26, 2026, Defendant filed the instant Motions: (1) to Compel Production of Plaintiff's Vehicle for Inspection; and (2) to Compel the Deposition of Plaintiff Cheryl Lynn Gibbons.

On June 12, 2026, Plaintiff filed an Opposition to the Kia's Motion to Compel Deposition.

Also on June 12, 2026, Plaintiff filed a Declaration of Joon Kim ("Kim") in Support of Plaintiff's Opposition to Defendant's Motion to Compel Vehicle Inspection. Court records show only Kim Declaration filed in Opposition to Kia's Motion to Compel Vehicle Inspection; no memorandum of points and authorities was filed.

As of June

25, 2026, Plaintiff has not filed a memorandum of points and authorities in opposition to Kia's Motion to Compel Vehicle Inspection and Kia has not filed a Reply to either motion. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply papers at least five court days before the

hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standard

1.

Motion

to Compel Deposition

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc. § 2025.010.) A party desiring to take an oral deposition shall give a notice in writing which states the specification of reasonably particularly of any materials to be produced by the deponent. (Code Civ. Proc. § 2025.220(a)(4).) A properly served deposition notice is effective to require a party to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc. § 2025.280(a).) A party served with a deposition notice waives any error or irregularity unless that party promptly serves a written objection at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc. § 2025.410(a).)

“If, after service of a deposition notice, a party to the action ... without having served a valid objection ... fails to appear for examination, or to proceed with it, or to produce for inspection any document, ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice.” (Code Civ. Proc. § 2025.450(a).)

2.

Motion

to Compel Production of Plaintiff's Vehicle for Inspection

“A party may demand that any other party allow the party making the demand, or someone acting on the demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.”²(Code Civ. Proc. § 2031.010(d).)

If a party filing a response to a demand for inspection thereafter fails to permit the inspection, the demanding party may move for an order compelling compliance. (Code Civ. Proc. § 2031.320(a).)

B.
Motion to Compel
Deposition

1.
Meet and
Confer

A
motion to compel a deposition must include a meet and confer declaration stating facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc. §§ 2025.450(b)(2), 2016.040.)

Kia's counsel, Avetik Galstyan (“Galstyan”), declares that he served a deposition notice to Plaintiff on March 18, 2026 with a unilaterally set deposition date of April 6, 2026. (Galstyan Decl., ¶ 3, Exh. A.) On March 30, 2026, Plaintiff objected to Kia's Notice of Deposition and indicated that counsel would meet and confer regarding a mutually agreeable date. (Id., ¶ 4, Exh. B.) On May 18, 2026, Kia's counsel followed up with Plaintiff's counsel, noting that an alternate deposition date had yet to be provided and again requesting alternative dates for the deposition. (Id., ¶ 5, Exh. C.)

On May 21, 2026, Defendant served a second Notice of Deposition with a deposition date of June 3, 2026. (Id.,

¶ 6, Exh. D.) And on May 26, 2026, Defendant sent an email attempting to confirm whether Plaintiff will appear for the June 3 deposition. (Id., ¶ 7, Exh. E.) As of the date of filing the motion, Galstyan attests that Plaintiff has not provided a response to any of Kia's attempts to secure a deposition date. (Id., ¶ 8.)

The Court finds Kia has met its statutory meet and confer obligations.

2.

Discussion

Kia moves to compel Plaintiff's deposition, arguing it has made multiple efforts to schedule the deposition over an extended period but Plaintiff and her counsel have repeatedly delayed and failed to provide a confirmed deposition date. In opposition, Plaintiff argues that he has not refused to appear for deposition and remains willing to cooperate in scheduling her deposition. Plaintiff's counsel, Joon Kim ("Kim"), states in his declaration that Plaintiff informed him that she is available to appear remotely for deposition on June 25, 2026. (Kim Decl., ¶ 5.)

Although Kim attests in his declaration that Plaintiff agreed to appear remotely for deposition on June 25, 2026, Kia's motion remains on the Court's calendar for hearing on June 26, 2026. Accordingly, the Court understands that parties have failed to agree upon a date for Plaintiff's deposition, but Plaintiff's counsel attests that Plaintiff is willing to appear for her deposition.

Kia's Motion to Compel Plaintiff's Deposition is GRANTED. The parties are ordered to meet and confer no later than June 30, 2026 to set a mutually-agreeable date and time for Plaintiff's deposition, and which deposition is ordered to occur no later than July 17, 2026.

C.

Motion to

Compel Production of Plaintiff's Vehicle for Inspection

Kia moves to compel the production of Plaintiff's vehicle for inspection, arguing that it has made numerous

attempts to inspect Plaintiff's vehicle without success.

Galstyan declares that on March 18, 2026 he served a Demand for Production of Vehicle for Inspection and Testing to take place on May 1, 2026 and simultaneously served a meet and confer letter requesting alternative dates for the vehicle inspection if the May 1 day did not work for Plaintiff. (Galstyan Decl. ¶ 3, Exh. A.) On April 24, 2026, Plaintiff served objections to Kia's Demand for Production of Vehicle for Inspection and Testing and indicated that Plaintiff's counsel would meet and confer regarding a mutually agreeable date. (Id., ¶ 4, Exh. B.)

On May 18, 2026, having not heard from Plaintiff's counsel, Kia served a second Demand for Production of Vehicle (see id., ¶ 5)[1] for an inspection to occur on June 5, 2026, and on May 26, 2026, Defendant sent an email attempting to confirm whether Plaintiff will make the vehicle available for inspection on June 5. Plaintiff has not provided a response to Defendant's attempts to secure a date.

In response, Plaintiff does not contest production of the Subject Vehicle for inspection. Rather, Plaintiff's counsel Kim attests that Plaintiff has informed him that she will be traveling out of state from June 21, 2026 through July 6, 2026. (Kim Decl., ¶ 5.) Kim attests that Plaintiff has not refused to produce the Subject Vehicle for inspection, Plaintiff remains willing to make the vehicle available for inspection, and Plaintiff is willing to cooperate in scheduling a mutually agreeable inspection date. (Kim Decl., ¶¶ 6-7.)

Kia's Motion to Compel Production of Plaintiff's Vehicle for Inspection is GRANTED.

The vehicle inspection is ordered to occur no later than July 31, 2026 at a mutually agreeable date, time and place.

The parties are ordered to meet and confer no later than June 30, 2026 to select a date, time and place for the inspection to occur.

III.

CONCLUSION

The Court GRANTS Defendant's Motion to Compel Deposition. The parties are ordered to meet and confer no later than

June 30, 2026 to set a mutually-agreeable date for the deposition of Plaintiff, which deposition is ordered to occur no later than July 17, 2026.

The Court GRANTS Defendant's Motion to Compel Production of Plaintiff's Vehicle for Inspection. Inspection of the Subject Vehicle is ordered to occur no later than July 31, 2026. The parties are ordered to meet and confer no later than June 30, 2026 to select a date, time and place for the inspection to occur.

[1] Galstyan's

Declaration in Support of Kia's Motion truncates at paragraph 5. Accordingly, and given that Plaintiff does not provide any substantive objection as to the timeline set forth by Kia, the information cited as the timeline of events after Kia's March 18, 2026 notice and request for alternative dates is taken from Kia's motion and from the concurrently heard Motion to Compel Plaintiff's Deposition.